Indian Constitution

05/12/25

Introduction - Derived from latin word,

Constituere → to establish or set up

It denotes a collections of principles that delineate the structure and functioning of government.

Adopted - 26 November 1949

Come in force - 26 January 1950

Longest written constitution of the world

Length - 448 articles, 25 parts, 12 schedules, 5 appendices, 106 amendments

Sources of Constitution -

1. Government of India Act of 1935 →

Federal Scheme, Office of Governor, Judiciary, Public Service Commission, Emergency provisions & administrative details

2. British Constitution → Parliamentary govt, Rule of law, legislative procedure, Single citizenship, Cabinet system, prerogative writs, parliamentary privileges and

3. Irish Constitution → Directive principles of State policy, Nomination of members to Rajya Sabha and method of election of president

4. US constitution → Fundamental rights, Independence of judiciary, judicial reviews, impeachment of president, removal of supreme court and high court judges, and post of vice president

5. Canadian Constitution → Federation with a strong centre, vesting of residuary powers in the centre & appointments of state governors by centre and advisory jurisdiction of supreme court

6. Australian constitution → Concurrent list, freedom of trade, commerce & inter course and joint sitting of two houses of parliament.

7. Weimar Constitution of Germany → Emergency provisions relating suspension of fundamental rights

8. Soviet Constitution (USSR, now Russia) →

Fundamental duties and the ideal of justice (social, economic & political) in the preamble.

9. French Constitution → Republic and the idea of liberty, equality & fraternity in the preamble

10. South African Constitution → procedure for amendment of constitution and election of members of Rajya Sabha

11. Japanese Constitution → procedure established by law.

Articles and Subject Matter -

Part	Subject Matter	Articles Covered
I	The union and its territories	1-4
II	Citizenship	5-11
III	Fundamental rights	12-35
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IV A	Fundamental duties	51 A
V	The Union	52-151
VI	~~States~~ The States	152-237
VII	The states in part B of first Schedule (REPEALED)	238 (REPEALED)
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Part	Subject Matter	Articles Covered
IX	The panchayats	243 – 243 O
IX A	The Municipalities	243P – 243 ZG
IX B	The co-operative societies	243 ZH – 243 ZT
X	The scheduled and tribal areas	244 – 244A
XI	Relation between the Union and the States	245 – 263
XII	Finance, property, contracts and suits	264 – 300A
XIII	Trade, Commerce and Intercourse within the territory of India	301 – 307
XIV	Services under the union and the States	308 – 323
XIV A	Tribunals	323A – 323B
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XXII	Short Title, Commencement, Authoritative Text in Hindi and Repeals	393 – 395

PREAMBLE

Introduction → Identity Card of Constitution

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philosophy of Constitution

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Inspired from Gandhi idea of Swaraj Keywords Self reliance, Justice, Tolerance

Purpose of the Constitution

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To provide a set of basic rules for the people of the country

The Constitution of India
Preamble

"We, THE PEOPLE OF INDIA, having solemnly resolved to constitute India into a SOVEREIGN SOCIALIST SECULAR DEMOCRATIC REPUBLIC and to secure to all of its citizens:
JUSTICE, social, economic and political;
LIBERTY of thought, expression, belief, faith and worship;
EQUALITY of status and of opportunity; and to promote among them all;
FRATERNITY assuring the dignity of the individual and the unity and integrity of the Nation;
IN OUR CONSTITUENT ASSEMBLY this twenty-sixth day of November 1949, do HEREBY ADOPT, ENACT AND GIVE TO OURSELVES THIS CONSTITUTION".

Total - 85 words (original 82 words)

After 42nd constitutional amendment (1976) three more words -

"Socialist", "Secular" and "Integrity"

Kesavananda Bharati case (1973) -

Preamble is an integral part of Indian constitution.

Ruling states that -> it is a part of basic structure of constitution

It can be amended under Article 368, but the basic structure can not be amended